several high courts struck down a law that afforded Christian women narrower grounds for divorce than men.

However, the story was different in respect of personal law that remained uncodified. As a senior lawyer put it, the 'ghost' of Narasu has continued to haunt courts across the country.[17] In one case in 1979, the question addressed to the courts was whether a Dalit was legally permitted to become a sanyasi. In a judgement that cut against the rationale in the Narasu case, the Allahabad High Court held that the personal law preventing Dalits from becoming sanyasis violated fundamental rights and became unconstitutional once the Constitution was enacted. However, the Supreme Court decisively reverted to Narasu, holding that fundamental rights do not have any bearing on personal law. Judges could not, in the court's words, infuse personal law with 'concepts of modern times' but were duty-bound to enforce the law as contained in religious scriptures and commentaries.[18]

Narasu was upheld once again by the Supreme Court in 1997.[19] An NGO filed a Public Interest Litigation (PIL) challenging several aspects of Hindu and Muslim law on the basis that they violated fundamental rights. The NGO's wish list to the court included a declaration that Muslim personal law permitting polygamy was unconstitutional and a declaration that Sunni and Shia law in respect of inheritance discriminated against women. The Supreme Court refused to delve into these issues in any detail, noting that these were matters best left to the political process. In its short judgement, it extensively cited Narasu and the proposition that personal law was immune from fundamental rights challenges. The court's decision was somewhat ironic, for in leaving these matters to Parliament in the spirit of democracy, it upheld a judgement that elevated uncodified personal law above democratically enacted law.

In 2018, the court was presented with another opportunity of setting right the mistakes of Narasu, or at the least acknowledging that the atmosphere in which that decision was made (an imminent uniform civil code) had long ceased to exist. Muslim women approached the court claiming that the practice of 'instant triple talaq' was unconstitutional. It was